

**IN THE 44TH JUDICIAL CIRCUIT OF WRIGHT COUNTY, MISSOURI
CIRCUIT CIVIL DIVISION**

TRENTON OVERHUE, and
NSI, A.1, LLC,

Plaintiffs,

v.

Case No.

KATHERINE MARIE WILTSE,

Serve at:

RR 72 Box 252

Norwood, MO 65717

Defendant.

VERIFIED PETITION

Plaintiffs Trenton Overhue (“Overhue” or “Trent”) and NSI, A.1, LLC (“NSI A1”) (collectively, “Plaintiffs”), for their Verified Petition against Defendant Katherine Marie Wiltse (“Defendant”), state as follows:

NATURE OF THE ACTION

1) This is an action for defamation and injurious falsehood arising from Defendant’s direct publication and republication, through at least two public Facebook groups and a pinned YouTube comment, of the specific and objectively verifiable assertion that a digital infrastructure facility associated with Overhue had experienced two fire incidents or fire events during the preceding three weeks.¹

2) This action concerns the repeated factual assertion of two recent fire incidents or events, the unsafe-operator meaning Defendant drew from that assertion, the resulting injury to

¹ Plaintiffs are aware of additional publications and republications potentially relevant to the claims asserted herein. For clarity and brevity, this Petition identifies only the publications and factual averments presently alleged. Plaintiffs reserve the right, subject to Rule 55.33 and other applicable law, to seek leave to amend this Petition to add further publications, republications, factual averments, and resulting damages as may be supported by continuing investigation and discovery.

Overhue's professional reputation, and the resulting injury to NSI A1's business reputation and pecuniary interests in the Springfield Project.

3) Counts II and III are pleaded in the alternative to the extent they address the same injury to NSI A1.

4) Plaintiffs do not seek a duplicative recovery.

PARTIES

5) Overhue is an individual engaged in developing and managing digital infrastructure facility projects in Missouri.

6) His professional reputation for safely developing and operating those projects is important to his work and business relationships.

7) NSI A1 is a limited liability company that has served as the applicant and project sponsor for the proposed digital infrastructure project at 2900 South National Avenue in Springfield, Missouri (the "Springfield Project"), including in the City's PREDEV2026-00192 predevelopment process.

8) NSI A1's reputation for competent and safe development, together with its goodwill and relationships with prospective tenants, investors, lenders, vendors, and governmental bodies, are valuable business and pecuniary interests.

9) Defendant Katherine Marie Wiltse is an individual who, on information and belief, resides in Norwood, Wright County, Missouri.

10) The challenged Facebook publications appeared under the name Katherine Wiltse, linked to her Facebook profile, and displayed her as the author.

11) Defendant's public professional profile also identifies Katherine Wiltse and links directly to the Living in Southern Missouri YouTube channel used for the challenged YouTube republication.

JURISDICTION AND VENUE

12) This Court has subject-matter jurisdiction because Overhue asserts a Missouri claim and seeks damages within the jurisdiction of the circuit court.

13) Venue is proper in Wright County under section 508.010, RSMo, because Defendant is an individual whose principal residence is in Wright County, Missouri.

14) Defendant is subject to personal jurisdiction in Missouri because she resides in Missouri and published the challenged statements in Missouri about a Missouri resident, a Missouri business, and Missouri projects.

FACTUAL ALLEGATIONS

15) Overhue is associated with a digital infrastructure facility located on Rifle Range Road in or near Marshfield, Webster County, Missouri (the “Marshfield Facility”), and with a proposed digital infrastructure project at 2900 South National Avenue in Springfield, Missouri (the “Springfield Project”).

16) NSI A1 is associated with Overhue and the Springfield Project and is the business entity through which the Springfield Project has been presented to the City of Springfield.

17) Defendant has publicly opposed the Marshfield Facility and the Springfield Project and has encouraged residents to oppose digital infrastructure development before local officials.

18) A May 8, 2026 Webster County public notice stated that a May 11 public meeting concerning digital infrastructure development had been requested by Katherine Wiltse and that the meeting was moved because increased attendance was expected.

19) On August 8, 2026, Defendant made a separate public Facebook publication naming Overhue, identifying the Springfield Project’s 2900 South National Avenue location, linking it to the Marshfield Facility, and urging public action.

20) When reviewed on August 27, 2026, the page displayed 120 reactions, 117 comments, and 51 shares.

21) On or about August 24, 2026, Defendant published the following statement in the public Facebook group identified as WTF Springfield MO:

Did you know that the data center on Rifle Range Rd in Marshfield has had 2 fire incidents in the last 3 weeks? Now the same developer, Trent Overhue, wants a 10MW data center right up against 100s of homes in Springfield. Please help to fill these meetings and voice concern. Don't just complain about how government is corrupt and then DO NOTHING. Please share!!!

22) The publication appeared under Defendant's name, was marked public, and was marked as having been posted approximately six hours earlier.

23) When reviewed on August 27, 2026, that first Facebook publication displayed 36 reactions, 57 comments, and 27 shares.

24) Defendant separately posted the same fire-incidents statement in the public Facebook group identified as Springfield, MO.

25) The second publication bore a different post identifier and a different attached-photo identifier, confirming that it was a distinct publication rather than another route to the first post.

26) When reviewed on August 27, 2026, the second Facebook publication appeared under Defendant's name and displayed 234 reactions, 64 comments, and 346 shares.

27) Both Facebook publications expressly identified Overhue, requested immediate public action, and asked readers to share the allegation with others.

28) A true and correct public-page screenshot of the first Facebook publication, captured on August 27, 2026, is attached as Exhibit A and incorporated by reference. *Exhibit A*.

29) A true and correct screenshot of the separate Springfield, MO group publication, captured on August 27, 2026, is attached as Exhibit B and incorporated by reference. *Exhibit B.*

30) By placing the alleged two recent fire incidents immediately before the words “the same developer, Trent Overhue” and a call to oppose the Springfield Project, Defendant presented the supposed incidents as evidence that Overhue’s facilities and development practices posed a demonstrated fire and safety danger.

31) The Living in Southern Missouri YouTube channel is linked from Defendant’s public professional profile and uses Defendant’s Living in Southern Missouri business identity.

32) On or about August 25, 2026, the @LivinginSouthernMO account published and pinned a comment beneath its video concerning the Springfield Project stating: “The data center on Rifle Range Road in Marshfield has had 2 fire events in the last 3 weeks.”

33) The comment then named “Trent Overhue, the same developer,” described the proposed 10-megawatt Springfield Project, requested that the comment be shared broadly, and stated that the time to stop the project was then.

34) The pinned YouTube comment was a separate publication to a separate audience and repeated the same objectively verifiable numerical allegation after the two Facebook publications.

35) When reviewed on August 27, 2026, the YouTube page displayed approximately 13,000 video views and 342 comments, and the pinned fire-events comment displayed 30 likes.

36) A true and correct screenshot of the expanded pinned YouTube comment, captured on August 27, 2026, is attached as Exhibit C and incorporated by reference. *Exhibit C.*

37) Overhue is personally familiar with the Marshfield Facility and its operations during the three-week period preceding Defendant’s challenged publications.

- 38) The Marshfield Facility did not experience a fire during that period.
- 39) On one occasion, a security guard believed that a temporary generator was not operating correctly and called the fire department as a precaution.
- 40) Fire-department personnel inspected the situation and determined that there was no fire and no other issue.
- 41) There was no second fire, second fire-department response, or other second fire-related incident at the Marshfield Facility during the period represented by Defendant.
- 42) Defendant's repeated numerical assertion was therefore false under the ordinary meaning of either "fire incidents" or "fire events," whether those terms are understood to mean actual fires or events that prompted fire-department responses.
- 43) At most, there was one precautionary response at which responders found no fire or other problem.
- 44) Whether two fire incidents or events occurred is capable of objective verification through CAD, dispatch, and incident records; facility, security, and generator records; photographs; and witness testimony.
- 45) Each challenged publication identified Overhue by name and was of and concerning him.
- 46) Although Defendant did not use NSI A1's complete legal name, the challenged publications identified the Springfield Project by its developer, approximate electrical capacity, and relationship to the Marshfield Facility.
- 47) Persons familiar with the Springfield Project and its business relationships understood the publications to refer to NSI A1 and its proposed project.

48) In context, the repeated assertion conveyed that Overhue had recently operated an unsafe facility with recurring fire problems and was attempting to place a facility presenting the same demonstrated danger near Springfield homes.

49) That meaning was defamatory because it tended to subject Overhue to public distrust and to impair confidence in his competence, safety practices, and fitness to develop and operate digital infrastructure facilities.

50) The same meaning was defamatory of NSI A1 because it portrayed NSI A1 as an unsafe and irresponsible developer, tended to prejudice NSI A1 in the conduct of its business, and tended to deter tenants, investors, lenders, vendors, officials, and others from dealing with or supporting NSI A1 and the Springfield Project.

51) The assertion that two fire incidents or fire events occurred within three weeks was a statement of fact, not rhetorical hyperbole or a protected opinion.

52) Defendant's separate evaluative and political language supplies context but is not asserted as an independent basis for liability.

53) Defendant directly published the allegation at least three times to distinct online audiences.

54) The displayed reactions, comments, shares, and views confirm that the publications reached numerous third parties, although those engagement figures are not themselves alleged as a substitute for proof of actual injury.

55) In the first Facebook thread, a reader responded, "Don't let it happen Springfield!!!" Defendant answered, "Time to be heard."

56) Please come to the meetings and tell everyone you know."

57) The exchange reflects that a reader connected the supposed Marshfield safety history to opposition to Overhue's Springfield Project.

58) As a direct result of the challenged publications, Overhue suffered actual injury to his professional reputation and goodwill among persons who saw or learned of the false accusation, together with humiliation, anxiety, and mental anguish resulting from that reputational injury.

59) As a direct and proximate result of the challenged publications and the public reaction they were calculated to generate, NSI A1 has suffered actual injury to its business reputation, goodwill, project-related relationships, and pecuniary interests, including lost or impaired tenant and investor opportunities, project delay, increased carrying and professional costs, and impairment of its commercial expectancies relating to the Springfield Project.

60) Based on the information presently available to it, NSI A1 estimates that its actual pecuniary losses attributable to Defendant's challenged publications and their resulting effects exceed \$1,000,000.

61) The precise amount and allocation of those losses will be established through documents and testimony.

62) In each direct publication, Defendant stated a precise number of incidents or events within a precise and recent time period as an unqualified fact.

63) Defendant repeated the numerical assertion across two Facebook groups and a pinned YouTube comment and affirmatively urged mass republication and immediate governmental action based on the asserted safety history.

64) Defendant expressly urged readers to share the assertion broadly, attend public meetings, and stop the Springfield Project.

65) Defendant therefore intended to cause, or at minimum recognized the likelihood of causing, pecuniary harm to NSI A1 and its project-related business relationships.

66) Defendant knew that the assertion of two recent fire incidents or events was false or published it in reckless disregard of its truth, including by repeating the precise numerical assertion to multiple audiences as a factual basis for stopping the Springfield Project.

67) The claimed incident history was readily verifiable before publication.

68) Defendant failed to exercise reasonable care in determining whether the Marshfield Facility had experienced two fire incidents or events before publishing and republishing that assertion.

69) To the extent required by the pleading requirements of this State, Defendant also published the numerical assertion with knowledge of falsity or reckless disregard for truth, including serious doubt as to its truth.

COUNT I - DEFAMATION (TRENT OVERHUE)

70) Overhue incorporates all preceding paragraphs as though fully restated herein.

71) Defendant published to third parties, through two separate public Facebook-group posts and a separate pinned YouTube comment, the assertions that the Marshfield Facility had experienced “2 fire incidents in the last 3 weeks” or “2 fire events in the last 3 weeks,” while expressly identifying Trent Overhue as the same developer proposing the Springfield Project.

72) The challenged statements identified Overhue and were of and concerning him.

73) The challenged statements were false because the Marshfield Facility had experienced no fire and no second fire-department response or other second fire-related incident during the represented period.

74) The challenged statements were defamatory and were published with the legally requisite degree of fault.

75) The publications directly and proximately caused actual injury to Overhue's professional reputation and the additional damages described above.

WHEREFORE, Plaintiff Trent Overhue respectfully requests judgment against Defendant for: (a) actual and compensatory damages in an amount that is fair and reasonable; (b) prejudgment and post-judgment interest as permitted by law; (c) taxable costs; and (d) such other and further relief as the Court deems just and proper.

COUNT II - BUSINESS DEFAMATION (NSI, A.1, LLC)

76) NSI A1 incorporates all preceding paragraphs as though fully restated herein.

77) Defendant published to third parties, through two separate public Facebook-group posts and a separate pinned YouTube comment, the assertions that the Marshfield Facility had experienced "2 fire incidents in the last 3 weeks" or "2 fire events in the last 3 weeks," and expressly used that asserted safety history as a factual reason to oppose the Springfield Project associated with NSI A1.

78) The challenged publications identified the specific Springfield Project, its developer, its approximate electrical capacity, and its relationship to the Marshfield Facility and were understood by persons familiar with the project and its business relationships to be of and concerning NSI A1.

79) The challenged statements were false because the Marshfield Facility had experienced no fire and no second fire-department response or other second fire-related incident during the represented period.

80) The challenged statements were defamatory of NSI A1 because they portrayed its development practices and proposed project as demonstrably unsafe, prejudiced NSI A1 in the conduct of its business, and tended to deter others from dealing with or supporting NSI A1.

81) Defendant published the challenged statements with the legally requisite degree of fault.

82) To the extent actual malice is required, Defendant published the precise numerical assertion with knowledge of its falsity or reckless disregard for its truth, including serious doubt as to whether two fire incidents or events had occurred.

83) The publications directly and proximately caused actual injury to NSI A1's business reputation and goodwill and the pecuniary losses described above, which NSI A1 presently estimates exceed \$1,000,000.

WHEREFORE, Plaintiff NSI, A.1, LLC respectfully requests judgment against Defendant for: (a) actual and compensatory damages in an amount that is fair and reasonable; (b) prejudgment and post-judgment interest as permitted by law; (c) taxable costs; and (d) such other and further relief as the Court deems just and proper.

COUNT III - INJURIOUS FALSEHOOD (NSI, A.1, LLC)

84) NSI A1 incorporates all preceding paragraphs as though fully restated herein.

85) Defendant published false statements of fact concerning the asserted recent fire history of the Marshfield Facility and expressly presented those statements as a reason to oppose and stop NSI A1's Springfield Project.

86) The false statements were harmful to NSI A1's pecuniary interests in the Springfield Project, its project-related goodwill, and its relationships and expectancies with tenants, investors, lenders, vendors, and other counterparties.

87) By expressly asking readers to distribute the fire assertion, fill public meetings, and stop the Springfield Project, Defendant intended to cause pecuniary harm to NSI A1 or recognized that such harm was likely to result from the publications.

88) Defendant knew that the assertion of two recent fire incidents or events was false or acted in reckless disregard of its truth.

89) The challenged publications directly and proximately caused special pecuniary loss to NSI A1, including lost or impaired tenant and investor opportunities, project delay, increased carrying and professional costs, and impairment of project-related commercial expectancies.

90) NSI A1 presently estimates those losses exceed \$1,000,000, subject to further calculation and proof.

WHEREFORE, Plaintiff NSI, A.1, LLC respectfully requests judgment against Defendant for: (a) actual, special, and consequential damages in an amount that is fair and reasonable; (b) prejudgment and post-judgment interest as permitted by law; (c) taxable costs; and (d) such other and further relief as the Court deems just and proper.

JURY TRIAL DEMAND

Plaintiffs demand a trial by jury on all issues so triable.

Respectfully submitted,

THE LAW OFFICE OF CHAD G. MANN, LLC



Chad G. Mann, Esq.
Missouri Bar No. 70213
901 E. St. Louis St., Suite 705
Springfield, Missouri 65806
Phone: (417) 842-8679
Fax: (417) 322-6062
law@chadgmann.com
ATTORNEY FOR PLAINTIFFS

VERIFICATION

STATE OF MISSOURI)

) ss.

COUNTY OF GREENE)

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I, Trent Overhue, individually and as an authorized representative of NSI, A.1, LLC, being first duly sworn, state that I have read the foregoing Verified Petition; that the factual allegations stated on my personal knowledge are true and correct; and that the allegations stated on information and belief are believed by me to be true and correct.



Trent Overhue, individually and
as authorized representative of NSI, A.1, LLC

SUBSCRIBED AND SWORN TO before me this 27th day of August, 2026.



Notary Public

